

Court No. - 3

Case :- WRIT - C No. - 11722 of 2022

Petitioner :- Smt. Kamlesh Kumari Verma

Respondent :- U.P. Power Corporation And 2 Others

Counsel for Petitioner :- Sheo Ram Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel for the respondent no. 2 and 3.

2. This writ petition has been filed praying for the following reliefs :

"i) issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 to withdraw/cancel all the process of recovery of electricity dues and recovery process issued against the petitioner in respect of domestic Connection No.1328/129174 category 10 sanctioned load 2 K.W. alleged to be installed in the house of the petitioner situated at Kanhaiya Nagr, Parmeshwar Gate, Tehsil and District Firozabad/alleged to be granted in pursuance to estimate deposited vide Receipt No.27 Book A 693258 dated 08.04.2015 (Annexure No.1 to the writ petition).

ii) issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 to get spot enquiry to the facts and allegations made in the representation submitted by the petitioner and pass appropriate reasoned and speaking orders upon it within the period so stipulated by this Hon'ble Court."

3. Learned counsel for the respondent no. 2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the

objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

A. V. Singh